

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 28, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV464307	Jessica Martinez v. Hyperice Mexico Holdings, LLC et al.	Click LINE 1 or scroll down for ruling.
Line 2	24CV433040	Jane Doe v. ROE 2 et al.	By stipulation and order, the matter is CONTINUED to October 8, 2026, at 9:00 a.m. in Department 10. The parties are ordered to inform the court no later than August 27, 2026, whether this motion and the motion for summary judgment also set for October 8, 2026, will remain as set. The court will prepare the order.
Line 3	25CV468318	Elizabeth Tan v. Volkswagen Group of America, Inc., a New Jersey Corporation et al.	Plaintiff's motion to compel deposition of defendant's person most knowledgeable. Notice is proper and the motion is opposed by defendant. Defendant's opposition indicates the deposition occurred in January 2026, meaning the motion is moot. Instead of a reply brief, plaintiff filed a notice that the matter "has been taken off calendar." Plaintiff is admonished to withdraw moot motions much earlier in the future so that the court's limited law and motion reservations can be opened for use by other litigants. The motion is DENIED AS MOOT. The court will prepare the order.
Line 4	23CV427200	Walter Kubon et al vs Rosalie Guancione	Click LINE 4 or scroll down for ruling.

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Line 5	24CV441895	BPM, LLP v. SAKU Corporation	Plaintiff BPM, LLP's motion to enter judgment by stipulation. (Code Civ. Proc., § 664.6.) Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2025, under which defendant Sakuu Corporation agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates defendant stopped making payments. That declaration seeks judgment for \$1,225,421.51, consisting of: a principal balance of \$1,175,953.13; \$41,158.38 in interest; \$8,250.00 in attorney fees; and \$60 in costs. On good cause shown, the motion is GRANTED. Moving party to submit proposed order and proposed judgment.
Line 6	25CV460409	Vi Tran v. Hyundai Motor America et al.	Click LINE 6 or scroll down for ruling.
Line 7	24CV450371	Midland Credit Management Inc. v. Pascal Rose	Plaintiff's motion to set aside default judgment and dismiss the action with prejudice. Notice is proper and the motion is unopposed. A trial court must grant relief from default if a timely application for relief from default is "accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) A declaration by plaintiff's counsel indicates the parties settled the matter before default judgment was entered. On good cause shown, the motion is GRANTED. The default judgment entered on July 18, 2025 is set aside and vacated. On plaintiff's request, the case is dismissed with prejudice. The court will prepare the order.